

23PSCV01869 23PSCV01869

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-31

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Case Number: 23PSCV01869 Hearing Date: July 31, 2026 Dept: H

Cuevas v. Abellada, Case No. 23PSCV01869

(Related to Case No. 24PSCV02916)

ORDER ON MOTION

TO ENFORCE SETTLEMENT

The hearing on Plaintiff Jinying

Cuevas' Revised Motion to Enforce the Settlement is CONTINUED to August 28, 2026, at 9:00 a.m. [see below].

Background

Case

No. 23PSCV01869

Plaintiff

Jinying Cuevas ("Cuevas") alleges that he gave Fred Catolico Abellada ("Abellada") money on December 29, 2019 and January 9, 2020 so that Abellada could purchase real estate in the Philippines on his behalf, but that Abellada failed to make this purchase. Abellada has failed to return Cuevas' money to him.

On

June 26, 2023, Cuevas filed a complaint, asserting causes of action against Abellada for: (1) Breach of Contract, (2) Breach of Contract, and (3) Common Counts.

On April 25, 2024 a "Stipulation

Re Settlement" was entered; that day, the Court ordered Cuevas' complaint dismissed with prejudice, pursuant to Cuevas' oral request, with the Court

retaining jurisdiction to enforce the settlement pursuant to Code of Civil Procedure section 664.6.

On October 28, 2025, the Court deemed Case Nos. 23PSCV01869 and 24PSCV02916 related; Case Nos. 24PSCV02916 was designated as the lead case.

Case No. 24PSCV02916

Cuevas alleges that, on December 10, 21 and 29, 2019 and on January 9, 2020, he paid \$100,000.00 to Abellada as “investments.” When Cuevas inquired about these investments multiple times, Abellada could not produce documents about the investments. Cuevas requested that Abellada return Cuevas’s investments. On November 7, 2022, Abellada informed Cuevas that \$20,000 of the investments were forfeited by the company in Philippines but he could not produce any documents to prove this statement. On April 25, 2024, the parties settled, but Abellada has failed to make any payments to Cuevas as agreed upon.

On September 6, 2024, Cuevas filed a complaint against Abellada.

On October 28, 2025, the Court deemed Case Nos. 23PSCV01869 and 24PSCV02916 related; Case Nos. 24PSCV02916 was designated as the lead case.

Legal
Standard

“If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement . . .” (Code Civ. Proc., 664.6, subd. (a).)

“For purposes of this section, a writing is signed by a party if it is signed by any of the following:

- (1) The party.
- (2) An attorney who represents the party. . .” (Code Civ. Proc., 664.6, subd. (b).)

Discussion

Cuevas

moves for an order to enforce the terms of the settlement agreement entered into by the parties on April 25, 2024. Cuevas also seeks "additional compensation," including \$10,000.00 to account for the original damage, plus \$15,250.00 in interest damages and \$18,500.00 for translation services, consultation fees, transportation costs, preparation time and loss of working time, for a total award of \$63,750.00.

As a

preliminary matter, the Court observes that Cuevas filed a 6-page document on June 22, 2026 styled "Plaintiff's Revised Motion of to [sic] Enforce the Settlement & Additional Compensation Under CCP § 664.6." On June 24, 2026, Cuevas filed a 5-page document styled "Plaintiff's Revised Motion of to [sic] Enforce the Settlement & Additional Compensation Under CCP § 664.6," along with a 2-page document styled "Notice of Motion Plaintiff's Motion of to [sic] Enforce the Settlement & Additional Compensation." The Court will treat Cuevas' June 24, 2026 filing as the operative papers.

Cuevas

represents, and/or the accompanying exhibit reflects, as follows:

On

April 25, 2024, Cuevas and Abellada attended a Mandatory Settlement Conference before Judge Bryant Yang, during which time the parties executed a written Stipulation Re Settlement. (Cuevas Decl., ¶¶ 2 and 3.) The Stipulation Re Settlement provides, in relevant part, as follows:

"1.

Plaintiff Jinying Cuevas will accept and Defendant Fred Catolico Abellada will pay \$20,000.00 to resolve this case and any potential claims, disputes, or causes of action between the parties.

2.

Defendant Fred Catolico Abellada will pay \$750.00 each month on the 28th of the month, starting May 28, 2024, to Plaintiff Jinying Cuevas until the \$20,000.00 are paid in full.

3.

Defendant Fred Catolico Abellada may make payment by check or electronic transfer such as Zelle, Venmo, or Paypal.

4.

Plaintiff Jinying Cuevas agree [sic] to dismiss this matter with prejudice."

The

Stipulation Re Settlement contains a section 664.6 clause.

Abellada

failed to make the required payments and remains in breach of the settlement agreement.

(Id., ¶ 5.)

The

Court will continue the hearing on the motion, to August 28, 2026, at 9:00 a.m.

It is unclear to the Court, based on the information contained in Cuevas' declaration, whether or not Abellada has made any payments pursuant to the Stipulation Re Settlement. The Court observes that the information contained on page 1, lines 21-29 of the motion is not set forth in Cuevas' supporting declaration.

The

Court directs Cuevas to file and serve a supplemental declaration, no later than August 17, 2026 (i.e., 9 court days prior to continued hearing date), addressing the information contained on page 1, lines 21-29 of the motion. Cuevas is instructed to advise the Court whether or not she has received any payments from Abellada at any time pursuant to the Stipulation Re Settlement.

Cuevas

is further directed to provide notice of the continued hearing date, with a proof of service to be filed by no later than August 21, 2026 (i.e., 5 court days prior to continued hearing date).